

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
FREDERICK MILLER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPT., POLICE OFFICERS SASKYA RODRIGUEZ SHIELD
17123 AND JOHN DOE AND JIM DOE (FICTITIOUS NAMES
BECAUSE THEIR IDENTITIES ARE UNKNOWN) FROM THE
77TH PCT.,

Defendants,
-----X

**SUMMONS WITH
VERIFIED COMPLAINT**

INDEX NO.:

Plaintiff designates Kings
County as the place of trial.
The basis of the venue is that
Kings County is the place
where the cause of action
arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service thirty (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 18, 2020

/s/ ROYCE RUSSELL
Royce Russell
R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street #18 FL.
New York, New York 10120
(718) 785-8890

Defendants' address:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Saskya Rodriguez
Shield# 17123
c/o 77th Precinct
127 Utica Ave
Brooklyn, New York 11213

Police Officer John Doe
(Fictitious name because his identity is unknown)
c/o 77th Precinct
127 Utica Ave
Brooklyn, New York 11213

Police Officer Jim Doe
(Fictitious name because his identity is unknown)
c/o 77th Precinct
127 Utica Ave
Brooklyn, New York 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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FREDERICK MILLER,

Plaintiff,

VERIFIED COMPLAINT

-against-

INDEX NO.:

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPT., POLICE OFFICERS SASKYA RODRIGUEZ
SHIELD 17123 AND JOHN DOE AND JIM DOE
(FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE
UNKNOWN) FROM THE 77TH PCT.,

Defendants,
-----X

The Plaintiff, Frederick Miller, by his Attorney, R-SQUARE, ESQ., PLLC., complaining of the Defendants respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the Defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, at all times mentioned, the Defendant, The City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers and correction officers therein.
3. Upon information and belief, at all times mentioned, and on the 24th day of November, 2019, at approximately 4:00 - 4:30 p.m., Police Officer Saskya Rodriguez, Shield # 17123, hereinafter referred to as "Rodriguez" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 77th Precinct, and at all relevant times set forth below acted in the capacity of a police officer.
4. Upon information and belief, at all times hereinafter mentioned and on the 24th day of November, 2019, "Rodriguez," was acting within the scope of his/her employment as a police officer and under the direction of the "City" as their agent, servant, and/or employee.

5. Upon information and belief, at all times mentioned, and on the 24th day of November, 2019, at approximately 4:00 - 4:30 p.m., Police Officer John Doe, hereinafter referred to as “John” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 77th Precinct, and at all relevant times set forth below acted in the capacity of a police officer.
6. Upon information and belief, at all times hereinafter mentioned and on the 24th day of November, 2019, “John” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant, and/or employee.
7. Upon information and belief, at all times mentioned, and on the 24th day of November, 2019, at approximately 4:00 - 4:30 p.m., Police Officer Jim Doe, hereinafter referred to as “Jim” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 77th Precinct, and at all relevant times set forth below acted in the capacity of a police officer.
8. Upon information and belief, at all times hereinafter mentioned and on the 24th day of November, 2019, “Jim” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant, and/or employee.
9. Collectively, “Rodriguez,” “John,” and “Jim” will hereinafter be referred to as the “Officers.”
10. Upon information and belief, the “Officers,” were screened, interviewed, hired by the “City,” trained by the “City,” was retrained by the “City,” monitored, supervised and/or disciplined by the “City.”
11. The Plaintiff, Frederick Miller, hereinafter referred to as “Frederick/Plaintiff,” is a resident of Kings County and timely filed and served a Notice of Claim on the City.
12. On November 24, 2020 at approximately 4:00 - 4:30 p.m., the Plaintiff, Frederick, was lawfully at the location of 1489 Sterling Place in the State of New York, County of Kings.
13. At that time and place, Frederick was moving his personal property from said location per a Court Order with a female friend, Ms. Hernandez.
14. Frederick was approached by the prior owner of the property, Mr. Perez. Mr. Perez harassed Frederick stating he could not remove his belongings. Mr. Perez then pushed Frederick for which Frederick pushed him back as Ms. Hernandez then intervened. Frederick threatened to call the Police on Mr. Perez and Mr. Perez then left said location.

15. Frederick and Ms. Hernandez then resumed the move for which Frederick left the location to return to work. Shortly, thereafter Ms. Hernandez called Frederick and informed him that the police were present and looking for him.
16. Frederick spoke to the “Officers” over the phone, and stated he did nothing wrong and feared returning to the location as his chest began to hurt. Frederick also informed the “Officers” that he had prior heart problems and was feeling anxious and overwhelmed and needed to go to the hospital. The “Officers” nonetheless ordered Frederick return to Sterling Place. Frederick complied and returned to 1489 Sterling Place.
17. Upon arrival, Frederick observed the “Officers” talking to Mr. Perez for which the “Officers” approached Frederick and asked his story. Frederick heard what Mr. Perez told the “Officers”, and his story was in sum and substance the same, that being they both pushed each other before the police were called.
18. “Officers” questioned Frederick about possessing a key to the said location. To which Frederick responded in the affirmative and showed his small key chain and a Court Order allowing him to remove his personal property. “Officers” then arrested Frederick and said that because he possessed the key chain and Mr. Perez called first, he had to be arrested.
19. Frederick was confused as to why he was being arrested and was never informed as to why he was being arrested.
20. Frederick was ordered to put his hands behind his back for which he complied.
21. Frederick informed “Officers” he had approximately \$1,600.00 (dollars) in his front upper shirt/jacket pocket and he did not want that money going to the precinct.
22. “Officers,” without Frederick consent, reached into his pocket and tried to retrieve the \$1,600.00 (dollars). “Officers” then told Frederick the money could not be found so Frederick reached into his pocket to retrieve said monies for which the “Officers” forcibly grabbed Frederick’s hand twisting it so hard Frederick heard a crunch.
23. Frederick told “Officers” his hand was hurting and also told “Officers” that he was having more chest pains and desperately needed to go to the hospital too seek medical attention. “Officers” replied going to the hospital would take too long.
24. Frederick was then transported to the 77th Precinct, whereupon his complaints of chest pains and pain in his hand were again ignored by “Officers” and Lt./Sgt. Officers within the precinct.

25. Frederick remained in handcuffs until he was eventually transported to Kings County Hospital, whereupon, "Officers" did not want to release Frederick's injured hand until the Doctor pleaded with "Officers" to release Frederick's hand so an x-ray could be performed.
26. Frederick sustained a compound fracture to his hand, which was placed in a cast. He was then transported back to the local precinct whereupon he was held for twenty-four (24) hours until he was released by the court.
27. Upon Frederick's release, he sought medical treatment for which it was confirmed he suffered a compound fracture for which surgery is a possibility. Frederick's hand was casted for thirty-six (36) days and as a result of the "Officers" actions Frederick still suffers pain.
28. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting in the cope of their employment.
29. The City of New York, their agents, servants, or employees intended to confine Frederick; Frederick was conscious of confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds therefore.
30. The "City," their agents, servants and employees as aforementioned committed battery and assault upon the Plaintiff without just cause or justification, and in an excessive manner and force, intentionally caused physical contact, causing serious injuries to Frederick's mind and body.
31. Frederick was aware of the threat of imminent harm and unconsented contact and actually feared it while the "Officers" had the apparent ability to cause said unlawful and unconsented contact and harm and actually caused it to occur.
32. The Defendants violated the Plaintiff's Civil Rights under 42 USCS § 1983 and 28 USCS §§ 1331 and 1343, in that the Plaintiff was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused the Plaintiff to be so deprived as stated in this Complaint, and in that Defendants, their agents, servants, and employees illegally seized, battered, and arrested the Plaintiff absent any justifiable reason for doing so; acted with racial animus; conspired to deprive the Plaintiff of due process and equal protection under the law, engaged in a cover up; denied the Plaintiff prompt and necessary medical attention, maliciously prosecuted the Plaintiff; failed to intervene, stop or report the

misconduct of fellow officers while having the ability to do so; and other and further violations of Plaintiff's rights and privileges secured to him under the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused Plaintiff to be so deprived of his rights, privileges and immunities secured to him under the Constitution of the United States and the State of New York.

33. The Defendants were negligent in failing to use such care in the performance of police duties as a reasonably prudent and careful police officer or officers would have used under similar circumstances, in permitting the police officers to continue to perform their duties in an improper, negligent, careless and reckless manner all without any negligence on the part of the Plaintiff contributing thereto.
34. The Defendants "City" and/or "the NYPD" were negligent in supervising, monitoring, assigning, reviewing, disciplining and promoting the subject officers.
35. Plaintiff, Frederick Miller was and is, at all times innocent of all charges and had committed no crime.
36. The Notice of Frederick's Claim and Notice of Intention to sue for damages eliciting the nature of claim, the date of, the place where and the manner in which the claim arose were duly served upon the Comptroller of the Defendant "City."
37. That a 50(h) hearing was not conducted by the Defendants notwithstanding the filing of a Notice of Claim and notice that a 50(h) hearing as not scheduled.
38. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the Defendants and the said Defendants have neglected or refused to make any adjustment or payment thereof.
39. That this action is commenced within one year and 90 days after the cause of action arose
40. That this action falls within one of the exceptions of CPLR §1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST
ALL NAMED DEFENDANTS OR FALSE IMPRISONMENT**

41. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully and at length set forth herein.

42. That beginning on or about the 24th day of November, 2019, at the approximate hour of 4:00 - 4:30 p.m., the Defendants, and their agents, servants, and/or employees intentionally handcuffed, battered and imprisoned the Plaintiff, without any just cause or grounds therefore and held him against his will under full force of arms.
43. That said imprisonment was caused by the Defendants "Officers", their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the Plaintiff was guilty of any crimes for which he was charged.
44. The Plaintiff was wholly innocent and did not contribute in any way or manner to his arrest and imprisonment by the Defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
45. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; the Plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.
46. That the Plaintiff was confined against his will until he was released.
47. That by reason of the aforesaid false imprisonment and detention, Plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom, and the said Plaintiff has been otherwise damaged.
48. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF FOR FALSE ARREST

49. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "48" with the same force and effect as if more fully and at length set forth herein.
50. That beginning on or about the 24th day of November, 2019, at the approximate hour of 4:00 - 4:30 p.m. at or near the location at Sterling Place, the Plaintiff was handcuffed and placed under arrest by the Defendants "Officers", their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms until he was released hours later.
51. That the Plaintiff was falsely arrested, imprisoned and accused by the Defendants, their agents, servants and/or employees.

52. That said arrest was caused by the Defendants “Officers”, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal seizure and search of the Plaintiff, when the Defendants “Officers” lacked cause to believe that the Plaintiff committed, or was about to commit a crime or was guilty of any crimes.
53. The Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the Defendants “Officers”, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
54. That the Defendants “Officers”, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the Plaintiff; that the Plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.
55. That by reason of the aforesaid false arrest, Plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said Plaintiff has been otherwise damaged.
56. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR
BATTERY AND ASSAULT**

57. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "56" with the same force and affect as if more fully and at length set forth herein.
58. Plaintiff was seized, searched, forcibly grabbed, tightly handcuffed, battered, assaulted, and physically and emotionally brutalized by the Defendant, “City”, and the “NYPD,” its agents/servants, and/or employees, including Defendant “Officers”.
59. That all said contact was committed without the Plaintiff’s permission or consent.
60. That all said contact was unlawful and without privilege.
61. That the use of force was excessive and without justification.

62. That all contact committed by Defendants “Officers” through their agents, servants, and/or employees, including the Defendant “Officers”, were offensive to the Plaintiff and caused him to fear further contact and imminent harm, and caused the Plaintiff to sustain physical and/or psychological injury.
63. That the above acts committed by the Defendants “Officers” constituted a battery and/or assault of the Plaintiff.
64. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

65. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and affect as if more fully and at length set forth herein.
66. That the Defendant, “City” was careless and reckless in hiring, retaining, assigning, training and failing to retrain, monitoring, supervising and promoting as and for its employees, Defendants “Officers,” in that said employee(s) lacked the experience, deportment and ability to be employed by the Defendants in the capacity in which they were utilized, i.e. as Police Officers; in that the Defendant, “City” failed to exercise due care and caution in its hiring and promoting practices; in that the Defendant “City” failed to investigate the above named employees’ backgrounds; in that the “City” failed to properly train, supervise and monitor the “Officers”; and in that the Defendant “City” was negligent in disciplining, retaining and retraining the named Defendants “Officers”; and in that the Defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.
67. That upon information and belief, the “City” by and through its agents had received numerous civilian complaints and/or lawsuits, against Defendants “Officers” and/or the 77th Precinct, that they were assigned to, prior to their seizure, search, and discourtesy, fabrication of evidence and battery and assault of the Plaintiff on November 24, 2019.
68. That the City failed to properly retrain said Officers, negligently continued to employ said Officers, negligently retained “Rodriguez,” “John,” and “Jim,” despite evidence of their police misconduct and continued to assign said Officers to act in their capacities as Police Officers without proper supervision, training and discipline.

69. That the “Officers,” while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of their police duties as a reasonable prudent and careful police officer would have used under similar circumstances, in that each was negligent, careless and reckless in the manner in which they investigated and/or performed their police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or conducted the false arrest and/or permitted the submission of false documentation by these and other officers; and in that the defendants “Officers,” their agents, servants and/or employees were otherwise careless, reckless and negligent.
70. That the aforesaid occurrence, to wit: battery and assault, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, its agents, servants and/or employees including Defendants “Officers” without any negligence on the part of the Plaintiff contributing thereto.
71. That by reason of the aforesaid, the Plaintiff, was imprisoned, lost his freedom, and stressed, and he was thereby damaged.
72. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH THROUGH SEVENTH CAUSES OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS UNDER 42
U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK

73. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked “1” through “72” with the same force and effect as if more fully and at length set forth herein.
74. That on or about the 24th day of November, 2019, at the approximate hour of 4:00 - 4:30 p.m. at or near the Sterling Place location, the “Officers” were present thereat as part of their regular and official employment as Police Officers for the Defendant, “City.”
75. Plaintiff was lawfully and properly at said location when the “Officers” acting as agents, servants and/or employees of the Defendants “City,” forcibly stopped, seized and frisked the Plaintiff absent just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity and was following all procedures according to said Court Order.

76. The Plaintiff was retaliated against by the “Officers” who illegally stopped, seized, searched, battered, assaulted, and arrested, because he asked why he was being arrested and demanded the Defendants look at his Court Order which allowed for him to be at the location and to remove his personal property.
77. Upon information and belief, the Officers were required to fill out a stop, question and frisk report.
78. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop, question and frisk report worksheet as required.
79. Defendants failed to activate their respective body cameras to record the stop, frisk and arrest of Frederick.
80. Defendants used excessive force.
81. Further, the other named Officers, present at the Plaintiff’s arrest, failed to report the false arrest.
82. Likewise, when the Defendants “Officers” were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
83. Upon information and belief, to date no disciplinary action has been taken against the offending “Officers” for engaging in said conduct or for failing to intervene, stop it or report it or have their body cameras activated at the time of the incident concerning Frederick.
84. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false Criminal Court Complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the Plaintiff.
85. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of his rights and liberties set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.
86. That said acts constituted acts of cruel and unusual punishment and deprived the Plaintiff of his rights and liberties set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

87. That said acts constituted acts that violated the Plaintiff's freedom as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
88. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
89. That Plaintiff, as an African American male, was deprived of his right to equal protection under the law and was targeted and his rights violated based on his race, a violation of the Equal Protection Clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
90. That the Officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene, stop and report the falsification of reports and evidence, their overt acts to deprive or hinder the Plaintiff's right to justice, and to injure him.
91. Upon information and belief, Police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
92. The Officers herein conspired to deprive the Plaintiff of equal protection under the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
93. That the Plaintiff's false arrest, battery and assault, violation of his constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which included excessive use of force; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest and prosecution, and injuries.

94. Defendants "Officers" actions on November 24, 2019 were performed under the color of law and the policies, statutes, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the Plaintiff.
95. That Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, battered, assaulted, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.
96. That by reason of the aforesaid, the Plaintiff was deprived of his liberty, lost income, battered, assaulted injured, and he was damaged.
97. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney(s) fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985, 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHT THROUGH TENTH CAUSES OF ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICERS RODRIGUEZ, JOHN AND JIM IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

98. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "97" with the same force and effect as if more fully and at length set forth herein.
99. That at all times hereinafter mentioned, the Defendant "Rodriguez" was employed by the Defendant, The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
100. That at all times hereinafter mentioned, the Defendant "John" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
101. That at all times hereinafter mentioned, the Defendant "Jim" were employed by the Defendant The City of New York and/or The New York City Police Department and was

acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

102. That at all times hereinafter mentioned, the Defendant “Officers” were employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

103. That at all times hereinafter mentioned, the Defendant “Officers,” individually and collectively, were acting pursuant to orders and directives from Defendant, “City”.

104. That during all times hereinafter mentioned, the Defendants “Officers,” individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth in this Complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

105. That the unlawful and illegal conduct of Defendants “Officers” deprived Plaintiff of the following rights, privileges and immunities secured too him by the Constitution of the United States and of the State of New York:

- i. The right of Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
- ii. The right not to be discriminated against based upon the Plaintiff’s race, creed, sex, or sexual orientation;
- iii. The right to Due Process Law;
- iv. The right to equal protection under the law; and
- v. The right not to be subjected to cruel and unusual punishment.

106. That by reason of the aforesaid violations such as, seizure of Plaintiff’s person, his false arrest and false imprisonment, battery, assault, falsifying evidence, and discrimination, the Defendant, “Officers” violated Plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the “Officers” and violated 42 U.S.C. §1983.

107. That as a direct proximate result of the “Officers” actions Plaintiff was physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.

108. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

109. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney(s) fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A ELEVENTH THROUGH THIRTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.
SECTION 1985, BY POLICE OFFICERS RODRIGUEZ, JOHN AND JIM IN THEIR
INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK,
THE PLAINTIFF ALLEGES:**

110. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked “1” through “109” with the same force and effect as if more fully and at length set forth herein.

111. That at all times hereinafter mentioned, the Defendant “Rodriguez” was employed by the Defendant the City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of The City of New York.

112. That at all times hereinafter mentioned, the Defendant “John” was employed by the Defendant the City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of The City of New York.

113. That at all times hereinafter mentioned, the Defendant “Jim” was employed by the Defendant the City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of The City of New York.

114. That at all times hereinafter mentioned, the Defendants “Officers,” individually, and/or collectively, were acting pursuant to orders and directives from Defendant “City.”

115. That during all times hereinafter mentioned, the Defendants “Officers,” individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City of New York and/or The New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges, and immunities secured to him by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and the State of New York and U.S.C. Section 1985.
116. That the Defendant “Officers” conspired to deprive Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to batter and to due process of law and equal protection of the law.
117. That by reason of the aforesaid violations such as, seizure and search of Plaintiff’s person, his false arrest, and false imprisonment, battery and assault, falsifying evidence, and discrimination, the Defendant Police “Officers” violated Plaintiff’s rights and privileges as provided to him by the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the “Officers” and violated 42 U.S.C. §1985.
118. That as a direct proximate result of the “Officers” actions Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
119. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney(s) fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A THIRTEENTH THROUGH FIFTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.
SECTION 1986, BY POLICE OFFICERS RODRIGUEZ, JOHN AND JIM IN THEIR
INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE
PLAINTIFF ALLEGES:**

120. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked “1” through “119” with the same force and effect as if more fully and at length set forth herein.

121. That at all times hereinafter mentioned, the Defendant “Rodriguez” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
122. That at all times hereinafter mentioned, the Defendant “John” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
123. That at all times hereinafter mentioned, the Defendant “Jim” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
124. That at all times hereinafter mentioned, the Defendants “Officers,” individually and/or collectively, were acting pursuant to orders and directives from Defendant, The City of New York.
125. That during all times hereinafter mentioned, the Defendants “Officers,” individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City of New York and/or The New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he or they had the ability or power to prevent or aid in the preventing of the commission of the same the “Officers” neglected or refused to do so.
126. That the Officers, each of them, could have aided or prevented the seizure and search of the Plaintiff’s person, the Plaintiff’s false arrest and false imprisonment, the battery, the assault, the falsifying evidence, and discrimination, the Defendant Police “Officers” refused or neglected to do so, and thereby violated Plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the “Officers” and violated 42 U.S.C. §1986.
127. That as a direct proximate result of the “Officers” actions, Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
128. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages,

costs, attorney(s) fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS FOR
MALICIOUS PROSECUTION

129.The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "128" with the same force and effect as if more fully and at length set forth herein.

130.The defendants filled out false police reports, falsified evidence, signed a false criminal court complaint and corroborated affidavits against the plaintiff for the purpose of prosecuting him for the charge of rioting in the second degree.

131.The defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiff and the injuries that she sustained at the hands of the police.

132.The Plaintiff was at all times innocent of any crime charged.

133.That due to the malicious prosecution the Plaintiff was caused to spend money to obtain legal counsel and attend and appear in Criminal Court.

134.On February 28, 2020, all criminal charges were dismissed against the Plaintiff.

135.That by reason of the aforesaid malicious prosecution, the plaintiff was terminated from employment and has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the Plaintiff demands judgment against the Defendants in a sum to be determined by the trier of fact, plus costs, attorney(s)' fees, punitive damages (on the fifth through fifteenth causes of action) and such other and further relief as to the Court seems just and proper on the first through fifteenth causes of action.

DATED: New York, New York
 November 18, 2020

/s/ROYCE RUSSELL

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R-SQUARE, ESQ. PLLC.
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ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm R-SQUARE, ESQ., PLLC., the Attorney of record for the Plaintiff in the within action; that I have read the foregoing Summons and Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

DATED: New York, New York
November 18, 2020

/s/ ROYCE RUSSELL
Royce Russell, Esq.